

Attn:

U.S. Copyright Office, Library of Congress

101 Independence Avenue, SE, Washington, DC 20559

RE: Section 1201 Study: Notice and Request for Public Comment

Massachusetts Institute of Technology (MIT) comments on Federal Register Docket 2015-8

Submitted by: Chris Bourg, Director of Libraries, on behalf of MIT Libraries (including MIT Press)

and MIT Office of Digital Learning

Massachusetts Institute of Technology

Cambridge, MA

Thank you for the opportunity to comment on the Section 1201 Study. Members of the MIT community rely upon access to a wide range of materials in digital form to carry out our mission of solving world problems through education, research, and scholarship. Digital materials are frequently subject to technological protection measures (TPM) and thus to the significant and chilling constraints of the Digital Millennium Copyright Act's (DMCA) section 1201. The MIT Libraries and MIT Office of Digital Learning have strong reservations about the DMCA and its rulemaking process and we appreciate the opportunity to provide input on this matter. We address several of the Copyright Office's subjects of inquiry below.

#1 Role and effectiveness of the prohibition on circumvention of technological measures in 1201a.

At MIT we have found 1201(a) inhibiting when evaluating the potential for sharing content from CDs and DVDs in an educational context. Section 1201(a) limits and constrains innovative educational and instructional activities, including the lawful sharing of media for educational purposes.

The DMCA's ban on circumvention of TPM is essentially a ban on use of DVD or Blu-Ray media, or any other new media that may emerge, if there is no specific exception. Use in a Massive Open Online Course (MOOC), such as through MIT's MITx/edX environment, is derailed by the rule-making system that requires each new kind of lawful use to come before the Copyright Office to seek its own narrow exemption, and then to have to lobby again for, and re-justify the need for, that exemption every three years. This process undermines the missions of universities and libraries to advance and disseminate knowledge, ironically inhibiting the use of the newest technologies by constraining uses of key material within our most innovative and transformative tools. For instance, courses offered to worldwide learners via MITx, free of charge, are democratizing access to education and advancing our understanding of how education can best be delivered online. The DMCA inhibits these humanitarian and technological advancements.

Libraries and universities need long-term and stable policies on use of materials in MOOCs and other platforms to provide a coherent environment for those building courses for these platforms. The three-year rule-making process works against a shared, stable understanding of what is permissible. Even when exemptions are created, they are problematic, because having to educate users about elaborate, time-limited and arcane exemptions is exceedingly difficult. The complexity of the rules inhibits use of digital media.

Our technology experts in the Libraries have found that when using widely deployed tools for copying digital media, it is often very difficult to detect whether technological protection measures (TPM) exist, so it is not always clear when one could be violating the DMCA. If TPM does exist, the threat of criminal penalties looms large. Although it is difficult to quantify missed opportunities, at MIT we have had to set aside materials from educational sharing due to the ambiguities regarding the existence of TPMs and, for faculty and researchers, the threat of criminal penalty looming over even the best-intended and well-informed use of digital media.

#3 Should section 1201 be adjusted to provide for presumptive renewal of previously granted exemptions.

The 3-year cycle of petitioning the Copyright Office for special exemptions is inefficient and creates an unnecessary burden and resource drain on libraries and universities. Past exemptions should be presumptively renewable, as the Office has suggested in its Notice of

Inquiry.

The law's requirement that each exemption be revisited every 3 years does not map well to the needs of universities and libraries, which have remained fairly constant throughout the DMCA's history. These needs – to access and use materials in manner consistent with copyright law for educational, research, and scholarly purposes-- should not have to be revisited and re-established every three years. The burden to provide proof each time is problematic, because the limits of 1201 stifle contemplated uses before they arise, making it highly challenging to capture and provide examples.

The rule-making process is cumbersome and inaccessible for anyone but experts who are actively practicing intellectual property law. The evidence gathering process and related filings as well as appearances at hearings present significant barriers. In this environment, deep-pocketed commercial interests are at an advantage, and universities with their distributed and decentralized environments are at a disadvantage. Requiring redundant reviews of unchanged facts and long-established needs through a resource-intensive process and structure is a waste of precious resources for all parties. In addition, the increasing complexity of each exemption, even if granted, makes it difficult for users to take advantage of the exemptions.

#8 Whether existing permanent exemptions are necessary, relevant, and/or sufficient.

The sole permanent exemption for libraries, provided in section 1201(d), is not useful. Libraries

generally request trial access from vendors to make purchase decisions and do not need the DMCA exemption that allows for reviewing an item for purchase. Library practitioners in copyright and acquisitions across the nation are unaware of any cases where a library would need to – or be able to – obtain an encrypted copy and circumvent protection measures in order to determine whether to buy an item. Libraries and archives did not ask for this exemption, nor is it useful to us. In addition, the language of this exemption has the potential to cause harm, as it augments confusion about the extent to which fair uses are still protected despite the language of the DMCA.

A useful permanent exemption would permit circumvention for all lawful uses-- all uses permitted by the Copyright Act. This was proposed by the Unlocking Technology Act. With this kind of permanent exemption in place, libraries and universities could appropriately and productively focus on the question of whether a use is fair, or permitted by another relevant exception.

#9 Whether there are other permanent exemptions that should be established.

For the reasons described above, we strongly recommend a permanent exemption to permit circumvention for all lawful uses—that is, for all uses permitted by the Copyright Act.

MIT's mission is to "advance knowledge and educate students in science, technology, and other areas of scholarship that will best serve the nation and the world in the 21st century." This mission depends upon use of copyrighted works for education, research, and scholarship. We call upon the Copyright Office and Congress to modify the DMCA to provide a permanent exemption for all lawful uses of digital media, in support of the mission of MIT and the missions of other universities, whose nonprofit educational and scholarly activities serve humankind.